

23TRCV02455 23TRCV02455

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-31

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Case Number: 23TRCV02455 Hearing Date: July 31, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ERIC

ABBISS;

Plaintiff,

vs.

EXO

ENERGY, INC.

;

Defendant.

Case

No.:

23TRCV02455

Hearing

Date:

July
31, 2026

Time:

1:30 p.m.

[tentative]

Order RE:

(1)

PLAINTIFF

ERIC ABBISS' motion FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff, Eric Abbiss

RESPONDING

PARTY: Defendant, Exo Energy, Inc.

(1)

Plaintiff

Eric Abbiss' Motion for Attorney's Fees is DENIED pursuant to Civil Code section 1780.

The Court considers the moving papers filed on June 1, 2026, the opposition brief filed on July 1, 2026, and the reply brief filed on July 8, 2026.

BACKGROUND

Factual Background

On July 28, 2023, plaintiff Eric Abbiss ("Plaintiff") filed their Complaint against defendants Exo Energy, Inc. ("Defendant") and DOES 1 through 100. The Complaint includes the following causes of action: (1) Unlawful Business Practices and (2) Negligence.

On June 9, 2025, the Court granted Plaintiff's Motion to Strike Defendant's Answer, which allowed

Plaintiff to request a default judgment.

On September 8, 2025,
Plaintiff dismissed DOES 1 through 100. On
that same day, the Court entered a default judgment against Defendant, ordering
judgment in the amount of \$234,458.39.

On December 3, 2025, the Court
granted Defendant's Motion for Order to Set Aside Default Judgment and to Set
Aside the Order Striking Defendant's Answer and Issuing Terminating Sanctions. (December 3, 2025, Minute Order, p. 6.)
Additionally, the Court ordered Defendant's attorney,
Benjamin Graff, to pay Plaintiff's counsel \$14,990.00 by December 31, 2025. (December 3, 2025, Minute Order, p. 6.)

On May 18, 2026, Plaintiff
allegedly accepted a Code of Civil Procedure section 998 Offer that did not
include fees and costs. (Motion, p.
2:3-4.)

On May 26, 2026, Plaintiff filed
a memorandum of costs, seeking \$1,719.55 in costs.

On June 5, 2026, the Court entered
judgment against Defendant's attorney, Benjamin, and in favor of Plaintiff,
awarding \$14,990.00. (June 5, 2026,
Judgment, p. 1:22-23.)

REQUEST FOR JUDICIAL NOTICE

The Court takes Judicial Notice pursuant to Evidence
Code Section 452 of November 27, 2024, Minute Order, Exhibit 1. However, the Court will not take judicial
notice of the truth of the matters presented in these documents since they are
subject to interpretation. (See L.B.
Research & Education Foundation v. UCLA Foundation (2005) 130
Cal.App.4th 171, 180, fn. 2, citing Comings v. State Bd. of Education
(1972) 23 Cal.App.3d 94.)

LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract,
statute, or law. (Code Civ. Proc, §

1033.5, subd. (a)(10)(B).) "The court shall award court costs and attorney's fees to a prevailing plaintiff in litigation filed pursuant to this section. Reasonable attorney's fees may be awarded to a prevailing defendant upon a finding by the court that the plaintiff's prosecution of the action was not in good faith." (Civ. Code, § 1780, subd. (e).)

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plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford v. Bd. of Trustees of California State Univ.* (2005) 132 Cal. App. 4th 359, 395.)

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*)

The factors that courts look at to

determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49 (*Serrano*).)

No specific findings

reflecting the court's calculations are required. The record only needs to show that the attorney's fees were awarded according to the "lodestar" or "touchstone" approach. The court's focus in evaluating the facts should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided.¿ The starting point

for this determination is the attorney's time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous].) However, California case law permits fee awards in the absence of detailed time sheets. (Sommers v. Erb (1992) 2 Cal.App.4th 1644, 1651; Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1810; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 103.) An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court. (Serrano, supra, 20 Cal.3d 25 at p. 49.)

DISCUSSION

Plaintiff contends entitlement to \$30,880.00 in attorney's fees pursuant to Civil Code section 1780, subdivision (e). (Motion, p. 2:5-11.) "The court shall award court costs and attorney's fees to a prevailing plaintiff in litigation filed pursuant to this section. Reasonable attorney's fees may be awarded to a prevailing defendant upon a finding by the court that the plaintiff's prosecution of the action was not in good faith." (Civ. Code, § 1780, subd. (e).) Here, Plaintiff has made no efforts to demonstrate that they prevailed in litigation filed pursuant to Civil Code section 1780. Accordingly, Plaintiff's motion is DENIED.

ORDERS

1) Plaintiff

Eric Abbiss' Motion for Attorney's Fees is DENIED.

2) Plaintiff

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 31, 2026

Tamara
Hall

Judge
of the Superior Court